

Smt. Kusumlata Raj Kumar Sureka vs Mr. Mahendra Sureka And Anr on 24 January, 2019

Author: R. G. Ketkar

Bench: R. G. Ketkar

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IN THE HIGH COURT OF JUDICATURE AT BOMBAY CIVIL APPELLATE JURISDICTION

Writ Petition NO. 5274 OF 2013

Smt. Kusumlata Raj Kumar Sureka

...Petitioner

Versus

Mr. Mahendra Sureka

And another

...Respondents

....

Mr. R.M. Kedia, Advocate for the Petitioner.

Mr. Ajit Kocharekar, Advocate for Respondent No.1.

Mr. G.S. Godbole, Senior Advocate a/w. Sumit Kothari I/b. Ms. Veena
Gowda, Advocate for Respondent No.2.

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CORAM : R. G. KETKAR, J.

DATE : 24th JANUARY, 2019 P.C.

1. Heard Mr.R.M. Kedia, learned counsel for the petitioner, Mr.Ajit Kocharekar, learned counsel for respondent No.1 and Mr.G.S. Godbole, learned Senior Counsel for respondent No.2, at length.

2. This Petition takes exception to the order dated 18.10.2012 below Exhibit-28 as also the order dated 1.1.2013 below Exhibit-48 passed by the learned Judge, Family Court No.3, Mumbai in Petition No.A.1270/2011. By order dated 18.10.2012, the learned trial Judge allowed application Exhibit-28 filed by respondent No.2, hereinafter referred to as 'Sarika', and directed respondent No.1, hereinafter referred to as 'Mahendra', to provide her a set of keys of the main door

901.wp.5274-13.doc of House No.A/5, Model Town, Gulmohar Road, JVPD Scheme, Mumbai

- 400 049 (for short, 'suit premises'). On failure to provide a set of keys within a week from the date of the order, Sarika will be entitled to get duplicate keys from the vendor.

3. By order dated 1.1.2013 below Exhibit-48, the learned trial Judge rejected the application made

by the petitioner Kusumlata Rajkumar Sureka (for short, 'Kusumlata') for her impleadment in Petition No.A.1270/2011 as also for recalling the order dated 18.10.2012 passed below Exhibit-28.

4. Mahendra had instituted Petition against Sarika under Sections 13(1)(ia) & (ib) and 25 of the Hindu Marriage Act, 1955 (for short, 'Act') for dissolution of the marriage on the ground of cruelty and desertion. During pendency of that proceeding, Sarika filed an application Exhibit-28 with a prayer for direction to Mahendra to hand over one set of keys of the suit premises. By order dated 18.10.2012, the learned trial Judge allowed that application. Mr. Godbole submitted that in pursuance of that order, Mahendra did not hand over one set of keys of the suit premises to Sarika and, therefore, she was required to get duplicate keys from the vendor.

5. It appears that by order dated 21.9.2017, the learned trial Judge has allowed the petition instituted by Mahendra and dissolved

901.wp.5274-13.doc the marriage between them by decree of divorce under Section 13(1) (ia) & (ib) of the Act.

6. Aggrieved by this decision, Sarika has instituted Family Court Appeal No.186 of 2017. She also took out Civil Application No.283/2017. On 12.12.2017, the Division Bench of this Court (Coram:

Smt. Vasanti A. Naik and Sarang V. Kotwal, JJ.) disposed of the Civil Application in the following terms :

"It would not be necessary to consider granting the prayers made in the Civil Application, as the learned counsel for the respondent makes a statement on instructions from the respondent, who is present in the Court today, that the respondent would not remarry during the pendency of the appeal.

Hence, by accepting the statement made on behalf of the respondent, that would be binding on the respondent, we dispose of the Civil Application."

7. It appears that Kusumlata had instituted S.C. Suit No.1560/2011 in the City Civil Court at Dindoshi, (Borivali Division) Goregaon, Mumbai seeking permanent injunction restraining Mahendra and Sarika in any manner entering upon and/or remaining in the suit premises. By order dated 8.1.2018, the learned trial Judge decreed the suit in terms of prayer clause (a). The learned trial Judge restrained Kusumlata and Mahendra from dispossessing Sarika from the suit premises till Mahendra makes alternate arrangement for accommodation

901.wp.5274-13.doc for Sarika to her satisfaction within a period of six months from the date of the order. On providing alternate accommodation by Mahendra, Sarika was directed to peremptorily vacate the suit premises. .

8. Aggrieved by the order passed by the City Civil Court, Mahendra has preferred First Appeal No.811/2018 and has taken out C.A. No.2063/2018 in that appeal. Kusumlata has preferred First

Appeal No.812/2018 and has taken out Civil Application No.1725/2018. Sarika has preferred First Appeal No.841/2018 and has taken out Civil Application No.2585/2018 therein. Mr. Godbole submitted that the next date of hearing of these appeals is 29.1.2019.

9. Present Writ Petition was heard on 3.1.2019. Mahendra was directed to file affidavit placing on record the premises to be offered to Sarika. In pursuance thereof, Mahendra has filed affidavit dated 11.1.2019 enclosing therewith list of properties which he is willing to offer to Sarika as an interim arrangement, details whereof are as under:

1. Benzer Apartments, 3rd floor, Lokhandwala, Andheri (West), Mumbai, (admeasuring approximately 600 sq. ft.)
2. Lenin Apartment, 4th floor, Lokhandwala, Andheri (West), Mumbai, (admeasuring approximately 600 sq. ft.)
3. Divyam Heights, 4th floor, Near Bhavans college, Andheri (West), Mumbai, (admeasuring approximately 500 sq. ft.)
4. Om Natraj CHS, Seven Bungalows, Andheri (West), Mumbai, (admeasuring approximately 500 sq. ft.)
5. Evershine Apartments, 6th floor, Near Versova Metro Station, Andheri (West), Mumbai, (admeasuring approximately 500 sq. ft.)

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10. Mr. Godbole submits that without prejudice to the rights and contentions of Sarika in all pending proceedings, she will take inspection of these premises within one week from today. Mr. Godbole assures that since Civil Application is taken out by Sarika and her First Appeal is due to come up for hearing on 29.1.2019, she will press for appropriate interim relief in that application.

11. In view thereof, list the petition for admission on 31.1.2019, to be listed in the Supplementary board. It is made clear that in case the parties do not obtain any orders in those First Appeals, this Court will proceed to consider this Petition on merits on the next date of hearing.

(R. G. KETKAR, J.) Deshmane (PS)